

[See sub-rule (4) of rule 3]

DECLARATION, SUPPORTED BY AN AFFIDAVIT, WHICH SHALL BE SIGNED BY THE PROMOTER OR ANY PERSON AUTHORIZED BY THE PROMOTER

Affidavit cum Declaration

Affidavit cum Declaration of Mr. JESUDAS RATHNAM, PARTNER, M/S JDA PROJECTS, promoter of the proposed project DIVYA VILLAS, located at Sy No 83/2 & 84/2, Lingambudhi Village, Kasaba Hobli, Mysore Taluk, /duly authorized by the promoter of the proposed project, vide its/his/their authorisation dated 01.06.2023.

I, Mr. JESUDAS RATHNAM, PARTNER, M/S JDA PROJECTS, promoter of the proposed project/duly authorized by the promoter of the proposed project DIVYA VILLAS, located at Sy No 83/2 & 84/2, Lingambudhi Village, Kasaba Hobli, Mysore Taluk, do hereby solemnly declare, undertake and state as under:

1. That I/promoter have/has a legal title to the land on which the development of the project is proposed

OR

I Mr. JESUDAS RATHNAM, PARTNER, M/S JDA PROJECTS, have/has a legal title to the land on which the development of the proposed project is to be carried out

AND

A legally valid authentication of title of such land along with an authenticated copy of the agreement between such owner and promoter for development of the real estate project is enclosed herewith

2. That the said land is free from all encumbrances.

OR

That details of encumbrances _____ including details of any rights, title, interest or name of any party in or over such land, along with details.

3. That the time period within which the project shall be completed by me/promoter is 31-12-2026.

4. That seventy per cent of the amounts realised by me/promoter for the real estate project from the allottees, from time to time, shall be deposited in a separate account to be maintained in a scheduled bank to cover the cost of construction and the land cost and shall be used only for that purpose.

5. That the amounts from the separate account, to cover the cost of the project, shall be withdrawn in proportion to the percentage of completion of the project.

6. That the amounts from the separate account shall be withdrawn after it is certified by an engineer, an architect and a chartered accountant in practice that the withdrawal is in proportion to the percentage of completion of the project.

7. That I/promoter shall get the accounts audited within six months after the end of every financial year by a chartered accountant in practice, and shall produce a statement of accounts duly certified and signed by such chartered accountant and it shall be verified during the audit that the amounts collected for a particular project have been utilised for the project and the withdrawal has been in compliance with the proportion to the percentage of completion of the project.

8. That I/ promoter shall take all the pending approvals on time, from the competent authorities.

9. That I/promoter have/has furnished such other documents as have been prescribed by the rules and regulations made under the Act.

10. That I/ promoter shall not discriminate against any allottee at the time of allotment of any apartment, plot or building, as the case may be, on any grounds.

Deponent

Verification

The contents of my above Affidavit cum Declaration are true and correct and nothing material has been concealed by me therefrom.

Verified by me at Mysore on this the 15th day of December Two Thousand Twenty Five.

Deponent